

Inspection Demand No. 19: “Produce all DOCUMENTS and ESI evidencing any medical treatment, assessment, examination or care that YOU received from five years prior to the INCIDENT to the date of YOUR responses herein.”

Denied. This request is overbroad and invades Plaintiff’s right to privacy in his medical records.

Defendant’s request for sanctions is DENIED.

2. CU0002030 TITLE, JERRY V. SAVALIN, RICK DAWSON ET AL

Gregory Gerald Callison is to appear for his examination as previously scheduled at 10:00 am on 7/24/2026 in Dept. 6 of the Nevada County Superior Court.

3. CU001323 SHIRLEY, RYAN VS. DYNASTY VALLEY, LLC

Motion to Approve PAGA settlement

BACKGROUND:

The parties have reached a settlement agreement of this PAGA action. There are approximately 460 Aggrieved employees who worked 10,425 PAGA Pay Periods. (Motion to Approve PAGA Settlement, p. 5:12-13.) The agreement allocates \$200,000.00, to pay individual PAGA payments, PAGA counsel’s attorneys’ fees, PAGA Litigation Expenses, a Service Award to Plaintiff and Administration Expenses. (Motion, p. 5:15-19.) After these deductions, the PAGA civil penalties will be divided 75% to the LWDA and 25% to the Aggrieved Employees. (Motion, p. 5:19-22.)

The parties are asking the Court to approve a Service Award to Plaintiff of \$10,000. (Motion, p. 6:5-8.) Plaintiff’s counsel is asking for 1/3 of the award as attorneys’ fees (\$66,666.67) and \$13,432.15 in Litigation Expenses. (Motion, p. 6:9-18.) They are also asking for up to \$5,950.00 in Administration Expenses. (Motion, p. 6:19-22.)

The parties claim that the “Settlement of \$200,000.00 penalizes Defendant for the alleged violations of California’s labor laws in an amount significant enough to deter alleged violations and provide genuine and meaningful relief.” (Motion, p. 10:13-15.) The also note that the \$200,000 settlement “represents approximately 19.2% of the non-stacking maximum penalty of \$1,042,500.00” which according to the parties is reasonable in light of the risks of going to trial. (Motion, p. 15:26-28.) Plaintiff also states that their experts have calculated Defendant’s maximum exposure at \$3,932,400.00. (Motion, p. 16:21.)

The parties state that “[i]n the context of mediation, Defendant represented through its counsel that it has experienced material financial difficulties that constrain its ability to fund a substantially larger settlement.” (Motion, p. 18:4-7.)